

AFFIDAVIT OF LAURA CAPPIELLO

My name is Laura Cappiello, and I was employed as the Import & Export Intermodal Manager for MSC Mediterranean Shipping Company (USA) Inc. Now my role is Intermodal Customer Service Pricing Manager. My business address is 420 Fifth Avenue, New York, NY 10018. I hereby state as follows:

1. I am familiar with the circumstances surrounding the delivery of the four containers identified in the bills of lading attached to this affidavit as Exhibit A (the “Containers”).

2. The Containers arrived at the Port Newark Container Terminal on or about December 9, 2020.

3. The last day of free time for the Containers was December 15, 2020.

4. Arrival notices were sent to Mohawk Logistics at an email address (info@mohawkglobal.com) provided by Sociedad Exportadora T&A Cordova S.A.C., the shipper named on the bills of lading, on or about November 30th 2020 and December 7th 2020.

5. Because charges were due on the Containers and those charges were not paid prior to the end of free time, the Containers could not be released and delivered prior to the end of free time.

6. Had the charges been paid and the Containers been released during free time, they could have been delivered to the consignee without delay.

7. By the time the charges were paid on the Containers, the terminal was closed for almost two full days (December 16 and 17). In addition, there was a shortage of trucks and no trucks available to deliver the Containers until December 23, 2020.

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8. On or about December 18, 2020, I spoke with a representative of Ice Cube Cold Storage, the location to which the Containers were to be delivered, who informed me that Ice Cube Cold Storage could not accept delivery of the Containers until December 28, 2020.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.



Laura Cappiello

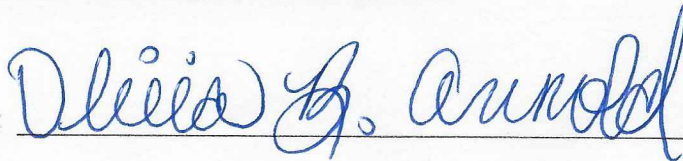
State of SOUTH CAROLINA)

County of Charleston)

On the 2nd day of September in the year 2021 before me, the undersigned, personally appeared Laura Cappiello personally known to me or proved to me on the basis of satisfactory evidence to be the individual(s) whose name(s) is (are) subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their capacity(ies), and that by his/her/their signature(s) on the instrument, the individual(s), or the person upon behalf of which the individual(s) acted, executed the instrument.

Signature and office of individual taking acknowledgment

Notary Public Signature:



(Seal)



Print: Olivia B. Arnold

My Commission Expires: _____

OLIVIA B. ARNOLD Notary Public, State of South Carolina My Commission Expires 5/21/2029
